

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 7, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against EXPERIAN BUREAU DE CRÉDITO, S.A. with NIF A82120601 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant states that the respondent has included their personal data in common credit information systems, but that they have not been included in a verifiable manner with acknowledgment of receipt, which has prevented them from exercising their right to erasure.

The data was registered in the respondent's delinquency file on May 8, 2022.

Relevant documentation provided by the complainant:

- Request for erasure addressed to Badexcug dated January 25, 2023.
- Response dated January 31, 2023, in which the reporting entity confirms the existence of debt and its permanence in the file.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on March 13, 2023, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 14, 2023, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

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THIRD: On May 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

From the documentation incorporated into the preliminary actions along with the complaint, the following aspects are observed:

- The complainant, in their complaint, does not question either the existence of a contractual relationship with BBVA or the existence of the debt; they simply state that the data was registered in the Experian-Badexcug delinquency file at the request of the BBVA entity, but without receiving adequate information about their possible registration in the asset solvency file.
- The complaint is directed against EXPERIAN BUREAU DE CRÉDITO, S.A. as the holder of the aforementioned delinquency file, understanding that they have not communicated their inclusion in the file in a verifiable manner, and that they had not adequately addressed their request for erasure of their data contained therein.
- The complainant submitted their request for data erasure to the respondent on January 25, 2023.
- The respondent replied to the complainant's data erasure request on January 31, 2023, indicating

that they could not proceed with the cancellation of their data as it had been confirmed by the BBVA entity.

- In that response, in addition to communicating the data contained in the file, which includes: name and address of the complainant, the reporting entity, and the registration date in the file on May 8, 2022; they inform about the purpose of the file and the data retention period, and the possibility of seeking the protection of the AEPD.

- The address listed in the complaint is "****ADDRESS.1"

On July 3, 2023, two requests for information were issued to the respondent and to BBVA in order to verify whether the complainant had been duly informed of the possibility of their data being included in credit information systems, and whether, once included, they had been notified of their inclusion in the legally established terms.

The respondent submitted a written response to this request for information on August 8, 2023.

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3/21

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In its response to the information request dated July 3, 2023, the responding party states that it is again sending a copy of the response sent to the initial transfer, although there is no entry associated with this file in the Agency's information system, submitted by the claiming party, prior to the submission of the response to the information request received on August 8, 2023.

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In its written response to the request, the responding party indicates among other aspects that:

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The notification of inclusion was communicated by post to the claiming party, at the address "(...)" that was communicated to it by the entity within the 30-day period following its inclusion, as established in the applicable regulations. It provides as justification a certificate issued by IMPRELASER, certifying the printing of 38,628 letters of "Badexcug Notifications" from the "Load: 08/05/2022." This document states that the notifications corresponding to BBVA comprise a total of 1,677 notifications, from number "XXXXXXXXXXXXXXXXXX" to "XXXXXXXXXXXXXXXXXX." The letter with key XXXXXXXXXXXXXXXXXXXX (XXXXXXXXXXXXXXXXXX) is included among those referred to in these certificates.

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Additionally, it provides a copy of the delivery notes from CORREOS, certifying that, in terms of Badexcug Notifications from the load of 08/05/2022, a total of 38,628 notifications were sent on 10/05/2022. In these delivery notes, under the section "DEPOSIT DATA," it states "Product" 01-ORDINARY LETTER."

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Furthermore, the responding party states, without providing any evidence, that it conducts a control of returns through the same provider that prints the inclusion notifications, IMPRELASER, S.L. This provider collects the notifications returned by the postal operator, records the reference number of the letter, and sends a file of the notifications returned during the previous week to EXPERIAN on a weekly basis. It claims that after conducting the relevant search, there is no record of a return related to this notification, therefore, there has been no incident in its sending and delivery to the recipient. It argues that this method of acting regarding the way notifications are made complies with Article 40 of Royal Decree 1720/2007, of December 21, which approves the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data, which establishes a procedure that serves to certify its compliance, and asserts that it should be understood as in force.

The aforementioned Article 40 establishes in relation to the notification of inclusion in files that:

"1. The responsible party of the common file must notify the interested parties regarding whom personal data has been registered, within thirty days from such registration, a reference of those who have been included, also informing them of the possibility of exercising their rights of access,

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4/21

Correction, cancellation, and opposition, under the terms established by Organic Law 15/1999, of December 13.

2. A notification will be made for each specific and determined debt, regardless of whether it is owed to the same or different creditors.

3. The notification must be made through a reliable, auditable, and independent means from the notifying entity, which allows for the effective verification of the deliveries.

4. In any case, it will be necessary for the data controller to know if the notification has been returned for any reason, in which case they may not proceed with the processing of the data related to that interested party. Returns in which the recipient has refused to accept the delivery will not be considered sufficient to prevent the processing of the data related to an interested party.

5. If the notification of inclusion is returned, the common data controller will verify with the creditor entity that the address used for this notification corresponds to the one contractually agreed upon with the client for communication purposes and will not proceed with the processing of the data if the mentioned entity does not confirm the accuracy of this information.”

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Additionally, a copy of the service provision contract between BBVA and the party being claimed is provided, with both entities being responsible for the processing of the personal data that is carried out.

For its part, BBVA submitted a written response to the aforementioned information request on 05/09/2023.

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In this writing, it indicates that it provides the following supporting documentation:

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Payment request made to the claiming party on 08/04/2022, attaching a SERVIFORM, S.A. certificate indicating that the payment request was made to the address “(...)”.

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Contract between BBVA and the claiming party, signed on 27/12/2021, and validated by a certificate issued by the entity Logalty Prueba por Interposición, S.L. This entity is registered as a qualified trust service provider in the registry of the Ministry for Digital Transition and Public Function.

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This contract includes an “Annex on Personal Data Protection Policy” which contains a section on “Additional Information” in point 3 regarding information and consultation with credit information systems, stating: “To analyze the economic viability of your requests and operations, BBVA needs to consult the data registered in your name in the credit information systems managed by the following entities: Asnef-Equifax Servicios de Información sobre Solvencia y Crédito S.L. (ASNEF), Experian Bureau de Crédito, S.A. (EXPERIAN). We inform you that we may communicate your debt data to the entities that manage credit information systems when: - It is a certain, overdue, and enforceable debt that has remained unpaid, and whose existence or amount you have not claimed through administrative, judicial, or arbitral means. - Five years have not passed since the date on which the debt should have been settled, from the maturity of the obligation or from the specific term, if it were of periodic maturity. The basis for legitimizing any communication to the credit information systems as well as the consultation for requests related to consumer credit is BBVA's legitimate interest in complying with responsible credit criteria.”

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As supporting documentation of the identity of the claiming party requested at the time of contracting, a copy of the ID card of the claiming party is provided. The validity date on this ID card states “VALID UNTIL” 03/10/2019.

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They provide communication dated 02/08/2023, sent to the claiming party, informing them, among other aspects, of: the origin and purposes of the processing, the categories and data subject to processing, recipients or categories of recipients to whom the personal data has been communicated or will be communicated, and the retention periods of the data.

From the responses to the request presented by the claimed party and by BBVA, as well as from the documentation provided with them, the following points are observed:

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That the data of the claimed party was registered in the BADEXCUG file on 08/05/2022 at the request of the BBVA entity.

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That the claiming party submitted their request for data deletion to the claimed party on 25/01/2023.

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That the claimed party responded to the claiming party's request for data deletion on 31/01/2023, indicating that it could not proceed with the cancellation of their data as it had been confirmed by the BBVA entity.

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That in this response, it also communicates the data that is found in the file.

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According to the claimed party, the communication of the inclusion was made to the address "...", and this address was provided by the BBVA entity. However, in the communication that this entity sends to the claiming party informing them about the data held in the BBVA systems and the origin of the same, the fiscal address of the claiming party is listed as "...", which is the same address that appears in the complaint submitted by the claiming party to the AEPD.

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The claimed party provides various documentation to justify that the communication of the inclusion in the credit information system it manages was made by sending a regular letter that was part of a batch of regular letters sent via Correos on 10/05/2022. Stating that it does not...

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6/21

It is noted that the letter sent to the claimant informing them of the inclusion has been returned.

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In the contract provided by the entity BBVA, which has given rise to the debt included in the credit information system, there is an Annex on Data Protection Policy that includes, among other aspects, a clause informing that BBVA may "communicate your debt data to the entities that manage credit information systems when: (...)".

FIFTH: According to the report obtained from the AXESOR tool, the entity EXPERIAN BUREAU DE CRÉDITO, S.A. is a small company dedicated to the information services sector, which had (...) in the year 2022.

SIXTH: On April 23, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). Mr. B.B.B., representing the respondent, with a notification address in this capital, Calle Príncipe de Vergara, Number 132, 1st Floor, Postal Code 28002, on behalf of the commercial company EXPERIAN BUREAU DE CRÉDITO, S.A. (hereinafter EXPERIAN), as evidenced by a copy of the Power of Attorney granted in Madrid, before Notary Mr. C.C.C., on May 16, 2002, with number 1771 of his Protocol, appeared and, as appropriate, submitted a written

statement of allegations in which he stated the following:

"On April 24, 2024, EXPERIAN was notified of a Resolution from the Director of the Data Protection Agency dated April 23, 2024, which agreed to initiate the Sanctioning Procedure referenced in the margin, and a deadline was granted to make allegations.

In accordance with the above, through this document, I present ALLEGATIONS TO THE AGREEMENT OF

OPENING OF THE SANCTIONING PROCEDURE

, formulating the following:

ALLEGATIONS

FIRST.- ACCREDITATION OF NOTIFICATIONS OF INCLUSION IN THE BADEXCUG FILE.

In compliance with its regulatory obligations, since the year 2002, when the BADEXCUG file began its activity, my represented entity EXPERIAN BUREAU DE CRÉDITO, S.A. has been notifying the inclusion of data to the affected parties through the sending of a communication by ordinary mail. As is well known, this obligation is currently included in Article 20, c) second paragraph of the LOPDGDD and Article 40 of Royal Decree 1720/2007, of December 21, which approves the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data (RLOPD).

Throughout all these years, EXPERIAN has always followed the same procedure for sending inclusion notifications. In summary, this procedure consists of:

1st.- Using the services of a third-party provider, which is currently the commercial company IMPRELASER, S.L. (CIF B80379936), with its registered office at C/ ***ADDRESS.2 and with CIF no. B-80379936, to whom the printing, sending, and management of returns of all printed notifications are entrusted. This provider has been providing printing services for notifications to EXPERIAN since 2012. The letters are currently sent through the postal operator CORREOS Y TELÉGRAFOS, S.A., S.M.E.

2nd.- Including a unique identifying code in each notification, with a specific format that allows identifying:

- a) The file regarding which the notification is made.
- b) The code of the entity that included the data in the file.
- c) The unique sequential number of this specific notification.
- d) The date of printing of the letter in Year-Month-Day format.

3rd.- Having a certificate from the printing provider (currently IMPRELASER, S.L.) corresponding to each update or data load, detailing the sequential range of printed notifications for that date, indicating the range of printed notifications for each entity, and detailing the total number of printed notifications in that data update.

4th.- Having a delivery note from the corresponding postal operator authorized to provide postal services under Law 43/2010, of December 30, on the universal postal service, user rights, and the postal market (in this case, SOCIEDAD ESTATAL CORREOS Y TELÉGRAFOS, S.A.U), which certifies the postal distribution of the same total number of notifications corresponding to that load or update.

In addition, EXPERIAN has a Procedure specifically designed to comply with the obligations set forth in sections 4 and 5 of Article 40 of the RLOPD, that is, the control of returns.

In this regard, it should be noted that the BADEXCUG file is managed under a Framework Contract dated February 25, 2002, signed between EXPERIAN BUREAU DE CRÉDITO, S.A.U. (hereinafter Experian) and the Interbank Cooperation Center, a contract that, after several modifications, remains in force, under an "official consolidated version" approved by the parties.

C/ Jorge Juan, 6

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The Framework Agreement has various Annexes that are an integral and inseparable part of it, and which constitute the technical and operational documentation that regulates the functioning of the file. Among this technical and operational documentation is the aforementioned procedure, which is a document titled "Procedure for Managing Returned Notifications, Version 2.1," the current version of which has been in effect since October 23, 2018, and which establishes the operational procedures to be followed when a notification of inclusion sent by Experian is returned.

The first version of this document was created in 2008 to comply with the provisions of sections 4 and 5 of Article 40 of Royal Decree 1720/2007, of December 21, which approves the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data, which establishes the following:

"4. In any case, it will be necessary for the data controller to know if the notification has been returned for any reason, in which case they may not proceed with the processing of the data relating to that interested party.

Returns in which the recipient has refused to accept the delivery will not be considered sufficient to prevent the processing of the data relating to an interested party.

5. If the notification of inclusion is returned, the common data controller will verify with the creditor entity that the address used to make this notification corresponds to that contractually agreed with the client for the purposes of communications and will not proceed with the processing of the data if the aforementioned entity does not confirm the accuracy of this information."

In accordance with this procedure, the control of returns of all sent letters is carried out through an external provider, which in this case is also the commercial company IMPRELASER, S.L. This procedure establishes, in summary, that when a notification of inclusion is returned, its data must be loaded into a repository of returned letters and sent to the informing entity to confirm whether the address is the one contractually agreed for notification purposes. The sending to the informing entity will be carried out through two different channels:

- Through the "eSPacio" application, used for managing rights of access, deletion, rectification, opposition, and limitation of processing.
- Through the sending of a plain text file.

The entity must confirm whether the address is the one agreed for notification purposes, and may also use two different channels:

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9/21

- Through the eSPacio application, used for managing rights of access, deletion, rectification, opposition, and limitation of processing.
- Through a "flag" or numerical indicator in the weekly contribution file through which the reporting entities provide data to the file. In the event that the reporting entity does not confirm the address as correct within a week, through one channel or another, the data will be removed from the file and will be blocked, and cannot be reactivated until the entity confirms the data as correct or provides a new address. In other words, entries that have been removed due to the entity not responding within the established period of one week will not be reactivated until the entity either expressly confirms the provided address or sends a new address for notification.

The procedure establishes that "notifications of entries that are returned for reasons other than refusal must be notified to the entities that provided the information and request their express confirmation regarding whether the address to which the communication was sent corresponds or not with the

contractually agreed address for notifications. In the event that confirmation from the entity does not occur, the affected record will be removed."

To this end, the procedure provides a mechanism whereby data related to returned letters will be notified through a file that will be sent weekly to each entity. The design of the record and the format of the fields are detailed in the aforementioned document.

The confirmation by the entities that the address is correct, that is, the one agreed upon for notifications, can be made in two ways: first, through the weekly contribution file (page 8, first paragraph of the Procedure), or through the application with which Experian communicates with the entities regarding matters related to the Consumer Protection Service (page 8 last paragraph of the Procedure: "this confirmation can also be made through the consumer protection service SPC6"). The file is sent to the entities via EDITRAN (which is the secure communication protocol) through which the contribution files and error files are sent, and at the same time is uploaded to the "eSPaCio" application of the Consumer Protection Service, where the representatives of the entities also securely access, so that they can choose the way in which they can confirm or not that the address is correct. Entities have a period of one week to update the data (page 8, second paragraph of the Procedure, "entities will have a period to respond of 1 week..."), a reasonable period for the entity to internally verify if the address agreed upon for notifications with its client is the one provided to the file. Considering that the weekly process of sending (or uploading to the eSPaCio application) the file of correct returns is carried out every Monday or Tuesday of each week, and the updates of Badexcug are made on Sundays, the response is expected in the "first or second update process after the sending of the file" (page 7).

As stated, the confirmation that the address is correct can occur either in the contribution file or through the eSPaCio application, but in any case, if by the second update process after the sending of the file the entity has not confirmed the address, the record will be removed.

The removal of the record will be included in the corresponding "Error Files" of the weekly update, as stated in the current document titled "Error File Update - Format CCI Version 2.15" (in effect at the time the events occurred).

This procedure, like the previous one, is also part of the Framework Agreement between Experian and the Interbank Cooperation Center (CCI) dated February 25, 2002, to which the participating entities in BADEXCUG adhere.

The procedure was modified in March 2008 to allow for the management of returned notifications, and within it, the returned notifications refer to error codes 198 and 199.

Both types of errors indicate that if the entity does not confirm the address as correct, the record will be removed.

SECOND.- COMPLIANCE BY EXPERIAN WITH THE OBLIGATIONS OF ART. 40 IN THE CASE OF THE NOTIFICATION SENT TO THE COMPLAINANT.

In the case of the inclusion in BADEXCUG of the debt related to the complainant MR. D.D.D. by BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (the only one referred to in the sanctioning procedure), EXPERIAN sent a notification of inclusion on May 10, 2022. The identification code of said notification is XXXXXXXXXXXXXXX.

The sending of the aforementioned documentation is evidenced by the following documents:

Copy of the notification sent, as recorded in the notification file of my represented party.

The letter was printed on 10/05/2022.

Each notification printed and sent by IMPRELASER, S.L. on behalf of EXPERIAN has a unique sequential number that allows it to be identified, a number that appears in the barcode on the back of the letter sent.

The number for this notification is XXXXXXXXXXXXXXX, with the following breakdown:

11/21

The initial number, "3", is common to all keys.

The next five digits - "00182" - are the entity key used by EXPERIAN. In this case, it refers to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

The following six digits "000252" are a sequential number for each of the notifications of each periodic load, for each entity and date, assigned consecutively by IMPRELASER, S.L.

Finally, the last eight digits - "20220510" - indicate the date of issuance of the notification in the file according to the following format: YYYYMMDD.

As can be verified, the letter was generated on 10/05/2022 (the data had been included in the file on 08/05/2022), and was sent to "E.E.E." at the following address "****ADDRESS.3", which is the same address provided by BANCO BILBAO VIZCAYA ARGENTARIA, S.A. when including the data in the BADEXCUG file.

2nd Certificate issued by IMPRE-LASER, S.L., certifying the printing of the notifications corresponding to the load of 08/05/2022 in BADEXCUG, where it states that the notifications corresponding to BANCO BILBAO VIZCAYA ARGENTARIA, S.A. comprise a total of 1,677 notifications, from number "XXXXXXXXXXXX" to "XXXXXXXXXXXX".

The letter with Key No. XXXXXXXXXXXXXXX is included among those referred to in these certificates. The total number of notifications printed in that load amounts to 38,628 notifications.

3rd Delivery receipts issued by CORREOS certifying the delivery by IMPRELASER, S.L. of a total of 38,628 notifications (resulting from the sum of 3,038 + 3,402 + 7,728 + 9,016 + 10,304 + 2,722 + 2,410 + 6 + 2 letters indicated in the receipts) corresponding to the data load of 08/05/2022 in BADEXCUG that were delivered for postal distribution between the dates of May 10 and 17, 2022.

All these documents were submitted to the SPANISH AGENCY FOR DATA PROTECTION in response to Information Request No. XXXXXXXXXXXX (CSV: AEPD-XXXXXXXXXXXX | Date: 03/07/2023), although they are being provided again here for the appropriate purposes. This response had been prepared to respond to the transfer of complaint with the same File No. XXXXXXXXXXXX (CSV: AEPD-XXXXXXXXXXXX | Date: 13/03/2023), which, indeed, as my client has been able to verify upon receiving the agreement to open the sanctioning procedure, due to an error attributable to the external provider responsible for submitting documents to public administrations, was not submitted.

THIRD.- RETURNED NOTIFICATION

It should be noted that, although in the response sent to the SPANISH AGENCY FOR DATA PROTECTION, due to an unintentional error, it was indicated that the notification was not returned, the truth is that the notification was indeed returned on June 20, 2022.

For the purpose of proving this fact, the following documents are attached:

- Screenshot of the file of returned notifications from my client, where it can be verified that there is a returned notification corresponding to the ID ***NIF.1 of the complainant and to the entity 00182 (BANCO BILBAO VIZCAYA ARGENTARIA, S.A.).

- Certificate issued by IMPRELASER, S.L. specific to this notification, certifying the printing, submission to Correos, and return of the referred notification.

Furthermore, to prove that the printing services, submission to the postal operator, and return control are entrusted to an external provider, the following documents are attached:

- Annex to the contract for printing notifications between EXPERIAN and IMPRE-LASER, which expands the object of the same to carry out return control.

- Annex adapting the previous contract to the General Data Protection Regulation.

In compliance with the provisions of Article 40.5 of the RLOPD, my client contacted BANCO BILBAO VIZCAYA ARGENTARIA, S.A. to request confirmation that the address to which the notification was sent was the one contractually agreed with the complainant "for notification purposes."

This provision states textually that "If the notification of inclusion is returned, the controller of the common file shall verify with the creditor entity that the address used to make this notification corresponds to the one contractually agreed with the client for communications and shall not proceed

with the processing of the data if the mentioned entity does not confirm the accuracy of this data."

In the case of this notification, the creditor entity BANCO BILBAO VIZCAYA ARGENTARIA, S.A. confirmed that the address was correct, as evidenced by the following documents:

- Copy of the record corresponding to the return of this notification in the section of returned notifications of the historical update file of BADEXCUG, where it can be seen that in field No. "182", which corresponds to the "flag" or indicator of incorrect address, the value was "1", meaning that the notification was correct.

- Copy of the records corresponding to this notification in the audit table of returned notifications, where it can be seen that the record was registered (value "A" in Column "N", "Action") on June 20, 2022, and was deregistered (value "A" in Column "N", "Action") on June 21, 2022, which is when the C/ Jorge Juan, 6

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13/21

informing entity, in this case BANCO BILBAO VIZCAYA ARGENTARIA, S.A., confirmed the correct address with the flag marked as "1" or correct address.

Finally, for the appropriate purposes, this party is interested in alleging the fact that its notification sending system has been evaluated and certified as compliant with the requirements of the international quality standard ISO 9011:2015 ("Quality Management and Assurance") by a third-party certifying entity (SGS), which further reinforces that its notification sending system is "reliable and auditable," as required by Article 40.3 of the RLOPD.

Attached for these purposes are the external quality certificates, by which the certifying entity certifies that the "Comprehensive Notification Sending Management" system of EXPERIAN complies with the quality requirements of the ISO 9011:2015 standard.

FOURTH.- SIMILARITY WITH PREVIOUS PROCEDURES. JURISPRUDENCE OF THE SUPREME COURT ON NOTIFICATIONS IN RELATION TO SOLVENCY FILES.

The same situation that occurs in the present sanctioning procedure has occurred on previous occasions. This party is interested in alleging that Experian has always followed exactly the same procedure, which has always been approved by the AEPD. It is worth noting that my client has never been sanctioned for failing to send a notification, although on numerous occasions, interested parties have reported that they had not received the relevant notifications, as the Agency, after examining the evidence provided by my client, has dismissed the complaint.

Procedures have even been opened against EXPERIAN in which the failure to comply with the duty to notify was alleged, and in all of them, the case was closed once my client presented the set of documents indicated earlier (such as PS/0317/2008, PS/0531/2008, or PS/00054/2011).

In fact, there are dozens of resolutions from the Spanish Agency for Data Protection in which it has archived complaints from interested parties who claimed they had not been notified, issuing resolutions that expressly validate EXPERIAN's procedure to demonstrate compliance with the duty to notify inclusion. For example, the procedures E/02222/2006, E/01011/2017, and E/02639/2016 can be cited, as well as in the cases of PS/00419/2016 and PS/00024/2017, all of which predate the entry into force of the GDPR, and, without being exhaustive, the procedures EXP202306491, EXP202306876, EXP202209186, among others, after the entry into force of the GDPR.

The last sanctioning procedure cited (PS/00024/2017) is particularly relevant in this case as it involved a situation identical to that of the present sanctioning procedure: my client had submitted the same documents that have now been provided in the Information Request EXP202302756, but it lacked the certificate from the third provider responsible for managing returns, confirming the return or lack thereof of a specific notification. This defect is remedied by the submission of said certificate.

Furthermore, this party wishes to highlight that, in recent months, the jurisprudence of the Supreme Court has decisively leaned towards validating the accreditation of the duty to send a notification or prior payment request to the interested party by ordinary mail, definitively resolving the controversy regarding the failure to comply with the duty to notify when notifications are sent in accordance with the system provided in Article 40 RLOPD, that is, by ordinary mail, proving the delivery of a batch or set of them to the postal services.

Thus, the SSTs of February 2, 2022 (Rec. No. 4282/2021), December 21, 2022 (Rec. No. 4174/2021), February 7, 2023 (Rec. Procedural Infraction 3296/2022), June 5, 2023 (Rec. No. 4420/2022), June 28, 2023 (Rec. No. 7143/2022), October 27, 2023 (Rec. No. 402/2023), and the recent one of January 11, 2024 (Rec. No. 641/2023) can be cited.

FIFTH.- CONCLUSION

In short, the documents presented in the Information Request No. EXP202302756, along with those provided in this writing, especially the certificate from IMPRELASER, S.L., undoubtedly demonstrate that EXPERIAN has perfectly fulfilled its legal obligations arising from Article 40.4 of the LOPD Regulation.

OTHERWISE I SAY: That under the provisions of Article 77 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, I propose for its practice, and provided that the sanctioning procedure is not to be archived without further processing without liability for Experian, the following MEANS OF EVIDENCE

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DOCUMENTARY

1st.- That the documents submitted with this writing be considered presented and as such proof.

2nd.- That all information contained in the Transfer of Complaint and Information Request No. EXP202302756 be incorporated into the Administrative File, if it is not already included.

3rd.- That a copy of the documents submitted by EXPERIAN in the sanctioning procedure E/00024/2017 and in the Preliminary Actions from which it originates be incorporated into the Administrative File.

II

WITNESS

From the following persons:

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sedeagpd.gob.es

15/21

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MR. F.F.F., Operations Manager of EXPERIAN, responsible for maintaining the BADEXCUG file updated and loading all the additions and removals of the entities contributing to the mentioned file and returned notifications, and will be able to certify the technical operation of the BADEXCUG file.

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MS. G.G.G., Support Manager for the CONSUMER PROTECTION SERVICE of EXPERIAN and person who accesses the auxiliary files of notifications and returned notifications based on her position.

Both can be summoned at the company's headquarters: C/ ***ADDRESS.4.

III

WITNESS TESTIMONY OF A LEGAL ENTITY

Under the provisions of Article 381 of the Civil Procedure Law, WITNESS TESTIMONY OF A LEGAL

ENTITY of the Association INTERBANK COOPERATION CENTER (CIF G-78043817), with registered office in Madrid, C/ ***ADDRESS.5, Postal Code 28001, for the person responsible to respond in writing to the following questions:

A)

Since February 25, 2002, has the Interbank Cooperation Center had a contract in force with Experian Bureau de Crédito, S.A. under which it provides access to a solvency file with information on compliance or non-compliance with monetary obligations, called BADEXCUG?

A)

Is BANCO BILBAO VIZCAYA ARGENTARIA, S.A. a party to said Contract?

B)

Is the "Returned Notifications Management Procedure, version 2.1" the version of the procedure called "Returned Notifications Management Procedure" in force in May 2022, does this procedure form part of the aforementioned Framework Contract, and was it created in 2008 to respond to the new obligations arising from Article 40 of the Development Regulation of the LOPD?

C)

Is the "Error File Update - CCI Format Version 2.15" of this document the version of the procedure called "Error File Update - CCI Format Version 2.15" (in force at the time the events occurred), in force in May 2022, and does this procedure form part of the aforementioned Framework Contract?

IV

WITNESS TESTIMONY OF A LEGAL ENTITY

Under the provisions of Article 381 of the Civil Procedure Law, WITNESS TESTIMONY OF A LEGAL ENTITY of IMPRELASER, S.L. (CIF B80379936), with registered office at ***ADDRESS.6 (28108 Alcobendas-Madrid), for the person responsible to respond in writing to the following questions:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

16/21

A)

Does IMPRELASER, S.L. provide external services to EXPERIAN BUREAU DE CRÉDITO, S.A. related to the recording of data from returned notifications, and if so, from what date?

A)

What does this service provision consist of, and does it specifically record the data of returned notifications weekly in a file and send it to EXPERIAN in a weekly file?

B)

Has the returned notification corresponding to the identification code number XXXXXXXXXXXXXXXX been returned and recorded and sent to EXPERIAN?

V

IN-PERSON RECOGNITION

Under the provisions of Article 353 and following of the Civil Procedure Law, IN-PERSON RECOGNITION of the file of returned notifications and of the application that allows access to the same table, for the Mr. Instructor and Mr. Secretary of this Sanctioning Procedure or by the Inspectors designated assigned to the General Inspection Subdirectorate of the Spanish Agency for Data Protection to access said table from the offices of Experian, incorporating into the administrative file the results of the relevant searches conducted on the complainant's data.

EIGHTH: On August 20, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection ARCHIVE the present sanctioning procedure opened against

EXPERIAN BUREAU DE CRÉDITO, S.A., with NIF A82120601, after this entity has demonstrated that the letter informing of the inclusion in the solvency file BADEXCUG was returned, and that the established procedure was followed confirming the complainant's address with the entity with which he had the debt subject to inclusion in the solvency file, BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The data of the complainant were registered in the debtor file of the defendant on May 8, 2022.

SECOND: The defendant, in its allegations and in the attached documentation, proves that the letter informing of the inclusion in the solvency file BADEXCUG was returned, following which it followed the established procedure confirming the complainant's address with the entity with which he had the debt subject to inclusion in the solvency file, BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/21

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Applicable Obligation

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data by including the personal data of the complainant in the solvency file. Likewise, EXPERIAN carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR: "Data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing.

Royal Decree 1720/2007, of December 21, which approves the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data, in its Article 40, regarding the notification of inclusion, establishes the following:

- "1. The controller of the common file must notify the interested parties regarding whom they have registered personal data, within thirty days from such registration, a reference of those who have been included, also informing them of the possibility of exercising their rights of access, rectification, cancellation, and opposition, under the terms established by Organic Law 15/1999, of December 13.
2. A notification shall be made for each specific and determined debt, regardless of whether it is with the same or different creditors.
3. The notification must be made through a reliable, auditable, and independent means from the notifying entity, which allows it to prove the effective completion of the deliveries.
4. In any case, it will be necessary for the file controller to know if the notification has been returned for any reason, in which case they may not proceed with the processing of the data related to that interested party. Returns in which the recipient has refused to receive the delivery shall not be

considered sufficient to prevent the processing of the data related to an interested party.

5. If the notification of inclusion is returned, the controller of the common file will verify with the creditor entity that the address used for this notification corresponds to that contractually agreed with the client for communication purposes and will not proceed with the processing of the data if the aforementioned entity does not confirm the accuracy of this information.”

Regarding the lawfulness of the processing of personal data, Article 6.1 of the GDPR establishes the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/21

The provisions in paragraph f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.”

In the present case, the claimant alleges that on May 8, 2022, the claimant's personal data was included in the financial solvency file of the respondent without any evidence that notification of its inclusion in said file was made.

The investigative actions carried out have confirmed that the claimant's data was included on 08/05/2022 in the credit information system BADEXCUG, at the request of the entity BBVA.

The respondent has indicated that it responded on January 31, 2023, to the request for deletion made by the claimant, stating that it could not delete the claimant's data because BBVA, that is, the entity that had communicated the inclusion, had confirmed the debt that caused the inclusion.

Regarding the notice of inclusion in the financial solvency file, the respondent entity has stated that on 10/05/2022, a notification of inclusion was sent via ordinary mail.

III

Allegations to the initiation agreement

The respondent entity, in its written allegations, states that EXPERIAN has a Procedure specifically designed to comply with the obligations set forth in sections 4 and 5 of Article 40 of the RLOPD, that is, the control of returns.

According to this procedure, the control of returns of all letters sent is carried out through an external provider, which in this case is the commercial company IMPRELASER, S.L. This procedure establishes, in summary, that when a notification of inclusion is returned, its data must be loaded into a repository of returned letters and sent to the reporting entity to confirm whether the address is the one contractually agreed for notification purposes.

Entities must update the data within a reasonable timeframe so that the entity can internally verify whether the address agreed for notification purposes with its client is the one provided to the file.

In compliance with the provisions of Article 40.5 of the RLOPD, the respondent entity contacted BANCO BILBAO VIZCAYA ARGENTARIA, S.A. to request confirmation that the address to which the notification was sent was the one contractually agreed with the claimant “for notification purposes.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

20/21

In the case of this notification, the creditor entity BANCO BILBAO VIZCAYA ARGENTARIA, S.A. confirmed that the address was correct.

The respondent entity states that the letter was generated on 10/05/2022 (the data had been included in the file on 08/05/2022) and was sent to "A.A.A.

" at the following address "***ADDRESS.1" which is the same address provided by BANCO BILBAO VIZCAYA ARGENTARIA, S.A. when including the data in the BADEXCUG file.

The respondent entity submits a certificate issued by IMPRE-LASER, S.L., certifying the printing of the notifications corresponding to the load of 08/05/2022 in BADEXCUG, which states that the notifications corresponding to BANCO BILBAO VIZCAYA ARGENTARIA, S.A. comprise a total of 1,677 notifications, from number "XXXXXXXXXXXX" to "XXXXXXXXXXXX."

The letter with Key No. XXXXXXXXXXXXXXXX is included among those referred to in these certificates. The total number of notifications printed in that load amounts to 38,628 notifications.

The respondent attaches the delivery receipts issued by CORREOS certifying the delivery by IMPRELASER, S.L. of a total of 38,628 notifications (resulting from the sum of 3,038 + 3,402 + 7,728 + 9,016 + 10,304 + 2,722 + 2,410 + 6 + 2 letters indicated in the receipts) corresponding to the data load of 08/05/2022 in BADEXCUG that were delivered for postal distribution between May 10 and 17, 2022.
IV

Proposal for Filing

After a thorough study of the documents in this file, it would be appropriate to file it in accordance with Article 40 of the RLOPD "if the notification of inclusion is returned, the responsible party of the common file will verify with the creditor entity that the address used to make this notification corresponds to the one contractually agreed with the client for communications and will not proceed with the processing of the data if the mentioned entity does not confirm the accuracy of this data."

Such filing is appropriate since the respondent, in its allegations and in the attached documentation, proves that the letter informing of the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
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21/21

inclusion in the BADEXCUG asset solvency file, and that the established procedure was followed for this purpose.

Therefore, after becoming aware of these facts, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claimant and the respondent.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article

46.1 of the aforementioned Law.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

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